

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

May 19, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Roberson vs. Orange Unified School District 25-01501917	1. Demurrer to First Amended Complaint Defendant ORANGE UNIFIED SCHOOL DISTRICT ("District") moves the Court for an order sustaining their demurrer to each and every cause of Action in Plaintiff's First Amended Complaint. Demurrer is overruled. Defendant's chief argument is that Plaintiff's entire FAC is subject to demurrer as Plaintiff's first through fifth causes of action are all barred by Government Code § 815, which precludes common law tort liability against public entities absent a specific statutory basis. However, the specific statutory basis has been expressly pled in each cause of action. (See FAC¶¶26, 37, 46, 58, 63, 76.)

		Defendant makes other arguments that should go to the merits of the case, and not the pleading (such as, whether it is immune, whether Pena had discretion in his conduct, whether Pena was acting in the course and scope of his employment.) Given that all causes of action have identified a statutory basis for government tort liability, Defendant is on notice of the claims pled against it. Defendant to file an Answer within 20 days. Plaintiff to give notice. 2. Case Management Conference
102	Trebunskaya vs. Gaugh 25-01481490	Motion to Set Aside/Vacate Default Defendants Kenneth Gaugh, Domenic J. Trutanich and Domenic J. Trutanich & Associates seek an order setting aside the defaults entered against them on 8/19/25 by Plaintiff Irina Trebunskaya. Code of Civil Procedure §473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (CCP §473(b).) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233; see Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 696.) Thus, where the party in default moves promptly to seek relief, and no prejudice to the